

NAPCS Unionization Research — State — Charter Sector Overview

Washington — PERC (WA) Jurisdiction — June 2026

NAPCS Unionization Research • June 2026 • Template v8.0

Section 1: State Overview

State	Washington
Labor Board	PERC (WA) — Public Employment Relations Commission of Washington State
Governing Law	RCW 41.56.0251 — applies RCW ch. 41.56 (PECBA) to all WA charter schools as public employers (enacted SB 6194, 2016). RCW 41.59.031 — charter schools are separate employers from any school district. Chapter 28A.710 RCW — Washington charter school law.
Federal NLRB Jurisdiction	PERC (WA) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — Washington has no right-to-work statute. RCW 41.56.0251 classifies WA charter school employees as public employees under PECBA — union security provisions are standard in WA public employee collective bargaining agreements. (WA charter school employees are public employees under RCW 41.56.0251 (SB 6194, 2016). PERC (Public Employment Relations Commission) has exclusive jurisdiction. Public employee union security is standard in WA.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — RCW 41.56.060 — card-check recognition available at 50%+1 of bargaining unit. Not right-to-work. Voluntary recognition without PERC petition is legal under WA PECBA and explains the absence of any PERC case for WIHS.
Registry Sweep	EXPANDED — June 4, 2026 (WA Charters Association current list) — 15 charter schools searched
Research Window	May 28 – June 4, 2026

Section 2: Charter Sector Landscape

Total charter schools in Washington: 15 (WA Charters Association school list (wacharters.org/schools/, accessed June 4, 2026) cross-referenced with 2026 SBE Charter School Report. 15 active schools. Why Not You Academy closing June 2026. Summit Olympus closed June 2025. Registry v69 (18 schools) is outdated — excludes Rooted School Vancouver, Innovation HS, Lumen HS, Pinnacles Prep (all opened post-v69).). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Washington	1	6.7%	WIHS confirmed organized via board minutes (voluntary recognition, September 2023). Pending Step 8 to confirm union name and CBA effective date.
Confirmed — Voluntary Recognition (no PERC certification)	1	6.7%	WIHS: board minutes Aug 31 + Sep 6, 2023 confirm CBA vote. Voluntary recognition — no PERC petition required under RCW 41.56.060 card-check provisions. Union name (Federated Collective of Washington Charter Teachers / AFT) from NAPCS baseline; direct contact pending.
WATCH — Labor-Active (no certification)	4	Multiple schools	Summit Sierra + Atlas (CMO_PRECEDENT — Unite Summit CA), Rooted School

			Vancouver (W5 PEER_AFFILIATION — WIHS FAQ language credited as foundational; CMO_PRECEDENT — Rooted School New Orleans organized), Lumen HS (LOW — social justice/staff empowerment mission language), Impact PS (W3 STAFF_TURNOVER — 2022 KUOW investigation), Catalyst: Bremerton (W3 STAFF_TURNOVER — 2024-25 mid-year resignations documented).
Not Unionized — No Signal	2	Multiple schools	Innovation HS (Spokane), Pinnacles Prep (Wenatchee) — full 8-step protocol complete, no signals found.
Closing — Within Research Window	1	N/A	Why Not You Academy (Cascade Public Schools) — closing June 2026. Not organized.
Closed — Within 3-Year Lookback	2	N/A	Summit Olympus (closed Jun 2025). Pullman Community Montessori (closed Jun 2024; Registry v69 closure date erroneous).
Total Charter Schools (WA universe — June 2026)	15	100%	13 Open + 1 Closing + 1 NAPCS baseline (WIHS). Authorization window closed April 2021. Sector is shrinking.

Charter Sector Enrollment

Total Charter Enrollment	4,708 students — 0.4% of state K–12 enrollment (1,094,502 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	2,111 students in network-affiliated schools — 44.8% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Impact Public Schools	CMO	4	4	—	1,331
Summit Public Schools	CMO	2	2	—	780

TOTAL — All CMO/EMO Schools in Washington		6		0 organized schools in network-affiliated charters
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† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

2 CMO (nonprofit). Approximately 9 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of June 2026.

1: Legal & Jurisdictional Framework

RCW 41.56.0251 — applies RCW ch. 41.56 (PECBA) to all WA charter schools as public employers (enacted SB 6194, 2016). RCW 41.59.031 — charter schools are separate employers from any school district. Chapter 28A.710 RCW — Washington charter school law. Washington is not a right-to-work state (Washington has no right-to-work statute. RCW 41.56.0251 classifies WA charter school employees as public employees under PECBA — union security provisions are standard in WA public employee collective bargaining agreements.). PERC (WA) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Washington. Card-check recognition is available under RCW 41.56.060 — card-check recognition available at 50%+1 of bargaining unit. Not right-to-work. Voluntary recognition without PERC petition is legal under WA PECBA and explains the absence of any PERC case for WIHS..

2: Charter Sector Structure

Washington operates 15 open-enrollment charter schools, enrolling approximately 4,708 students. 2 charter management organizations and education management organizations operate in Washington. The largest networks by campus count are Impact Public Schools (4 campuses in state), Summit Public Schools (2 campuses in state). Approximately 9 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of WA charter school union organizing found. WIHS organizing occurred via voluntary recognition with no public announcement — consistent with the absence of a PERC petition. The only press signal is the KUOW May 2022 investigative report on Impact Public Schools staff conditions. WA Charters Association coverage (wacharters.org/news-and-press/) focuses on school performance and renewal decisions. No organizing-related coverage in Seattle Times, Crosscut, or Chalkbeat Seattle.

Stakeholder Communications

WEA institutional opposition posture toward charter sector. Unite Summit (CA) explicitly CA-only. No WEA or AFT-WA communications referencing organizing of WA charter staff found. No WA charter school employer labor relations communications found. WIHS voluntary recognition occurred without any public employer statement.

Legislative Context

SB 6194 (2016): established PECBA coverage for WA charter schools. Authorization window closed April 2021. Historical: RCW 41.56.036 (2004) — conversion charter carryover rejected by voters (Referendum Measure No. 55, November 2004).

Section 6: Contract & CBA Access Registry

PERC (WA) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Whatcom Intergenerational High School	Federated Collective of Washington Charter Teachers (AFT) — from NAPCS Feb 2026 baseline; pending Step 8 confirmation	CONFIRMED — voluntary recognition, September 2023 Unknown — pending Step 8 direct contact	Request: office@intergenerational.school